

HEADNOTE

- “1. Art. 9(1) UPCA must be interpreted such that if the subject matter of the appeal proceedings is of a non-technical nature only, and there are no technical issues at stake, the Court of Appeal may decide the matter without the need to assign two technically qualified judges to its panel of three legally qualified judges. This is without prejudice to the fact that once technically qualified judges have been assigned, they will, as judges, have to deal with the entire dispute, including the non-technical aspects thereof.*
- 2. When a request to make written pleadings and evidence available to a member of the public is made pursuant to R.262.1(b) RoP, the interests of a member of the public of getting access to the written pleadings and evidence must be weighed against the interests mentioned in Art. 45 UPCA. These interests include the protection of confidential information and personal data ('the interest of one of the parties or other affected persons') but are not limited thereto. The general interest of justice and public order also have to be taken into account. The general interest of justice includes the protection of the integrity of proceedings.*
- 3. A reasoned request under R.262.1(b) RoP is not the same, and has to be distinguished from, an application under R.262.3 RoP.”*

COURT
Court of Appeal Luxembourg

PATENT

KEYWORDS

PROCEEDINGS
Confidentiality order

Composition of the panel of the Court of Ap...

Art. 9(1) UPCA

Public access to written pleadings and evid...

R.262.1(b) RoP

Article 9 The Court of Appeal

SUMMARY

The Court of Appeal in Luxembourg issued a decision concerning a confidentiality order. According to the headnotes of the decision, courts may proceed without appointing technically qualified judges to a panel when an appeal involves only non-technical issues, though any appointed technical judges must still address all aspects of the dispute. When the public requests access to court filings under the Rules of Procedure, courts must balance the public's interest in transparency against the parties' confidentiality concerns and other protected interests, while also considering broader principles like procedural integrity and public order. A formal reasoned request for public access to documents differs from and must be distinguished from a separate procedural application for the same purpose.